However, while this trial was in progress, Viceroy Irwin suddenly issued the Lahore Conspiracy Ordinance on 1 May 1930, the effect of which was that: (i) a three-judge special tribunal was mandated to complete the hearing within a fixed period; (ii) the special tribunal's judgment could not be challenged on appeal and (iii) only the Privy Council in London could hear the appeal. We know the legal and constitutional difficulties that this manner of a criminal trial posed. These difficulties have never been resolved. There were the stark facts that the ordinance was never approved by the Central Assembly or the British Parliament; it lapsed without any legal or constitutional support and it is clear that its only purpose was to try and hang Bhagat Singh in the shortest time possible. This resulted in Bhagat Singh, Rajguru and Sukhdev being sentenced to death on 7 October 1930. This particular method of trial and conviction has been ruled subsequently unlawful in Bhagat Singh's land of origin. So the question now is whether there ought to be an atonement, a reckoning, or even a recision of the verdict. Fortunately, we have some clear-cut examples to choose from.

In recent years, a key piece of terrorism-related legislation in Pakistan has been the Anti-Terrorism Act. It came into force in 1997 after being passed by the National Assembly and Senate under the government of Nawaz Sharif.[4] It had propitious timing, following as it did an attack in Lahore in January of that same year. Mehram Ali, member of the Shia extremist group Sipah-e-Muhammad Pakistan (later labelled a terrorist organization), set off a bomb near a courthouse. It killed twenty-three people, including two Sunni leaders of Sipah-e-Sahaba Pakistan, an anti-Shia organization, who were on trial at the time, as well as a journalist and police officers. Ali was tried and sentenced to death by the newly created Anti-Terrorism Court and appealed to the Anti-Terror Appellate Tribunal. His appeal eventually made its way to the Supreme Court of Pakistan on issues of constitutional compatibility with the new legislation, but judges upheld the conviction and Mehram Ali was executed not too long afterwards on 11 August 1998.[5] What is interesting, however, is that despite upholding the sentence of death, the judges of the supreme court found that sections of the Anti-Terrorism Act flew in the face of Pakistan's